Parshas Nasso

Making Torah Ours

Halacha · Minhag · Hanhaga · Zman Matan Toraseinu

I. Liba Esther's Question

As usual, my daughter Liba Esther's questions give me the fuel for my Dvar Torah. It is always an amazing gift when she does that, because her questions are well beyond her years. This week she asked me, and later also brought the same question to Rav Channen in shiur: why do we have both minhagim and halachos? Why do we have customs alongside commandments? Why isn't everything just halacha?

That is not just a child's question. That is a question about the entire architecture of Jewish life. And as we go into Shavuos, Zman Matan Toraseinu, and into Parshas Nasso this Shabbos, the question touches the heart of both. Shavuos is filled with minhagim that are not halacha in the strict sense. The custom to eat dairy. The custom to stay up learning through the night. Neither of these is among the mitzvos of the day itself, yet they have become deeply woven into how Klal Yisrael actually experiences the Chag, connecting us to the zman, to its themes, to its history. So what exactly are minhagim doing? If we stood at Har Sinai, if we said na'aseh v'nishma, if Hashem gave us a Torah, why do we need more? Why not simply fulfill what halacha requires and stop there?

The answer begins with understanding what halacha is, and then understanding what minhag adds. Put simply: halacha tells us what Hashem wants from us. Minhag helps us bring ourselves into what Hashem wants from us. Halacha gives the structure. Minhag gives the personal flavor, the geshmak, the lived relationship that allows Torah to enter not only the mind and the actions, but the home, the family, the emotions, and the personal avodah of each individual Jew.

II. The Framework Comes First

At Har Sinai, Klal Yisrael said na'aseh v'nishma:

נַעֲשֶׂה וְנִשְׁמָע

"We will do, and we will hear."

— Shemos 24:7

The order matters. First comes the commitment. First comes the acceptance that Hashem's will is binding, before I fully understand it, before I can even articulate all my questions about it. That is halacha. It is the framework within which everything else lives.

Take tefillin as an example. The Torah says v'hayu l'totafos bein einecha, they shall be as totafos between your eyes. But what are totafos? What does the box look like? What are the straps? What parshiyos go inside? None of that is left to personal imagination or spiritual intuition. It comes through Torah Shebaal Peh, through Mesorah, through halacha transmitted from Sinai. The structure is given. Once that structure is in place, then we can speak about hanhagos and minhagim. Klal Yisrael has the accepted practice that men put on Rashi tefillin. Many Sefardim and many Chassidim also put on Rabbeinu Tam. That is not replacing halacha or inventing a personal Torah. That is taking a mitzvah and adding a deeper personal connection, a geshmak, within the framework that Torah already established.

And this is the continuous oscillation that runs through all of halachic life: deoraisa to derabbanan, derabbanan to minhag, minhag to personal hanhaga, and back again. Each layer serves the one beneath it without displacing it. The gedarim of derabbanan protect the deoraisa. The minhagim of a kehillah sweeten and fortify the derabbanan. The personal hanhagos of an individual animate the minhagim. It is a living, breathing structure, and every level has its role.

III. V'Ish Es Kodashav Lo Yihiyu

Parshas Nasso opens a window into this structure through a specific pasuk that carries far more than its immediate halachic weight:

וְאִישׁ אֶת קָדָשָׁיו לוֹ יִהְיוּ

"Each man's holy things shall be his."
— Bamidbar 5:10

On the level of practical halacha, Rashi explains based on Chazal that this establishes the principle of tovat hana'ah l'baalim: when giving the designated gifts of kehunah, the terumah, the maaser, the other matnos, the owner retains the right to decide which Kohen receives them. The Kohen cannot simply seize what is halachically his. The giver has genuine discretion. There is a chiyuv, an obligation to give. But within that obligation,

there is relationship. Who do I give to? The Kohen I am close with? A family member? Someone whose avodah I want to support? That is where personal hanhaga enters the mitzvah. I have a mitzvah, and I also have a heart. I have an obligation, and I also have a relationship to that obligation.

But the words reach much further than the laws of matnos kehunah. V'ish es kodashav lo yihiyu. His holy things shall be his. We are standing at the threshold of Zman Matan Toraseinu, and the Torah is telling us something about what it means to receive. The Gemara in Maseches Shabbos describes what happened when Moshe Rabbeinu ascended to receive the Torah. The malachim objected. This is a hidden treasure, they argued. Why should it be handed to flesh and blood? And Moshe answered by showing that Torah belongs specifically in the human world. The malachim have no parents to honor, no temptation to resist, no struggle with desire or doubt, no need to sanctify Shabbos because they do not work. Torah was made for people. For our kitchens and our families, our exhaustion and our grief, our growth and our failure. Hashem gave it to us. And now, v'ish es kodashav lo yihiyu. His holy things are his. Torah is yours. The question is what you are doing with it.

We spoke about this at Lag BaOmer as well. Torah is compared to fire. Fire can warm a home, cook food, illuminate darkness. But fire can also burn and destroy. And as my chavrusa and I are learning right now with Rav Channen in hilchos bishul Shabbos, fire can even cook your food on Shabbos in a way that creates a violation. The fire itself is not the problem. How and when and why you use it is the whole question. Torah works the same way. Torah in the hands of someone who is emotionally aligned, who is using it with humility and honesty, becomes a source of warmth, clarity, and connection. Torah in the hands of someone who is using it as ego, as a way to elevate himself over others, or as a substitute for actual inner work, can burn. V'ish es kodashav lo yihiyu. Hashem gave you something holy. What are you doing with it?

IV. Sotah: Kedusha Within Relationship

The parsha continues into the halachos of the Sotah, and the transition is not as jarring as it first appears. Because kedusha is not only in the Beis Midrash. Kedusha is also in the home. A marriage is its own space of kedusha. Husband and wife are set aside for one another, designated for one another. That is part of what kadosh means: not merely separated away from, but reserved for. When the relationship is emotionally healthy,

when there is communication, trust, kavod, and honesty between husband and wife, the home can become a vessel for real kedusha.

But when communication breaks down, when fear replaces trust, when a boundary is crossed or even appears to be crossed, what was meant to be kadosh becomes filled with doubt and pain. The Sotah process is not simply punitive. It creates a path for clarification. It allows false suspicion to be removed and truth to emerge. And the Torah says that if she is innocent, she is cleared and will be blessed, with Rashi explaining that she receives brachos even beyond what she had before. When the doubt is addressed honestly, when the garbage is removed, the kedusha between husband and wife can become stronger than it was. That is not only about Sotah. It is about every relationship. Do we build our closest relationships on trust and honest communication, or on fear, insecurity, and avoidance? Torah asks us to look at that question honestly, because the quality of our homes is not separate from our avodas Hashem. It is part of it.

V. Nazir: The Personal Gedar

From Sotah the parsha moves into the Nazir, and the connection is intentional. The Sotah shows what happens when the kedusha within a relationship becomes misaligned. The Nazir shows a person proactively building new gedarim in order to become more aligned.

אִישׁ אוֹ אִשָּׁה כִּי יַפְלִא לִנְדֹּר נֶדֶר נָזִיר לְהַזִּיר לַה

"A man or woman who shall clearly utter a vow, the vow of a Nazir, to separate himself for Hashem."

— Bamidbar 6:2

The Nazir takes on restrictions beyond even what the Kohanim are required to maintain: no wine, no grape products, no haircuts, no tumas meis. He is not simply avoiding something negative. He is designating himself, setting himself aside in an even more intensified way for a higher avodah. And even within the Nazir's path, the oscillation continues. The Torah gives the core laws. The deoraisa establishes what a Nazir is. The derabbanan, including the halacha that an unspecified nezirus is thirty days, builds the practical framework around it. And then within that framework, each individual Nazir brings his own reason, his own commitment, his own personal hanhaga in how he fulfills it. The Nazir does not invent a new religion. He enters a real Torah category and uses it as a vehicle for personal growth. That is exactly the balance the whole parsha has been

building: not making everything subjective, but taking objective Torah and making it personal.

VI. Birchas Kohanim: Bracha Needs a Vessel

After the Sotah and the Nazir, the Torah arrives at Birchas Kohanim, and the placement tells the whole story:

יְבָרֶכְךָ ה׳ וְיִשְׁמְרֶךָ׃ יָאֵר ה׳ פָּנָיו אֵלֶיךָ וִיחֻנֶּךָּ׃ יִשָּׂא ה׳ פָּנָיו אֵלֶיךָ וְיָשֵׂם לְךָ שָׁלוֹם

"May Hashem bless you and guard you. May Hashem shine His face toward you and grant you grace. May Hashem lift His face toward you and place peace upon you."

— Bamidbar 6:24–26

The parsha has walked us through the structure of giving what belongs to the Kohen and Levi, honest relationships in the home, and the personal commitment of the Nazir. Now we arrive at bracha. Because bracha needs a vessel. Rashi explains on v'yishmerecha that Hashem not only gives the blessing, He also guards it. A human master can give a gift but cannot protect it from being lost or wasted. Hashem gives and Hashem guards. But the receiving end also has a role. Am I becoming the kind of vessel that can hold what is being offered? Are my relationships healthy? Am I using my Torah as fire that warms, or fire that burns? Am I living with the kind of alignment that allows bracha to actually land?

VII. The Nesiim: Same Mitzvah, Different Heart

The parsha closes with the korbanos of the Nesiim, and this section is famous precisely for its repetition. Each Nasi brings an identical korban. Twelve times, the Torah records the same details for each shevet in exactly the same language. The question writes itself: if every Nasi brought the same thing, why repeat it twelve times? Why not say once that all twelve leaders brought the same offering and leave it at that?

Because the Torah is teaching that the same act is not always the same act. Externally, the korbanos were identical. But each Nasi brought his offering from his own place within Klal Yisrael, his own shevet, his own tafkid, his own relationship to the Mishkan, his own heart and kavana. Same korban. Different neshama. The Torah honors each one individually, writing it out in full twelve times, because each individual expression of the same mitzvah carries its own irreplaceable value.

This is exactly what happens in tefillah. Two people can stand side by side davening the exact same Shemoneh Esrei, the same siddur, perhaps even the same nusach. But my struggles are not your struggles. My gratitude is not your gratitude. My relationship with Hashem is not your relationship with Hashem. That does not fracture the unity of Klal Yisrael. It deepens it. The unity of Klal Yisrael is not sameness. It is many different neshamos all aligned toward the same Hashem, each one bringing its unique light into the same framework. This is also what happened at Har Sinai. Every Jew stood together receiving one Torah. And yet each neshama also received the Torah as its own personal encounter with Hashem. The group experience and the individual experience were both real, both necessary, and neither cancelled the other out.

VIII. Not Brains on a Stem

Rav Yehoshua Gerzi of Pilzno said it simply and directly: we should not become brains on a stem, and the words of Torah should not become books on a page.

That line is everything going into Shavuos. Because it is entirely possible to sit and learn Torah all night and forget that we are in a conversation with Hashem. To turn a sugya into information only. To learn halacha and forget that it is the ratzon Hashem. To read Chumash and forget that Hashem is speaking to us personally, right now, in this moment. Shavuos is the annual reminder that Torah is not merely a subject. Torah is a relationship. When we sit and learn tonight, maybe every once in a while we should stop and remind ourselves: I am learning this because it is the ratzon Hashem. I am learning because Hashem gave me His Torah as a gift. And maybe ask directly: Hashem, what do You want from me in this? How can my minhagim, my hanhagos, my personality, my background, my strengths, my struggles, and my unique neshama become aligned for You? How do I take the same Torah that every Jew received and make it mine, not by changing it, but by living it?

IX. Back to the Question

So we come back to Liba Esther's question. Why do we have both minhagim and halachos? Why do we need both the commandment and the custom?

Because halacha tells us what Hashem wants from us. Minhag helps us bring ourselves into it. Halacha is the command. Minhag is the way that command becomes lived, by a person, by a family, by a kehillah, across generations. Halacha gives the structure. Minhag gives the geshmak, the sweetness, the personal flavor. The derabbanan makes sure we

fulfill the deoraisa properly. The minhag helps us feel it. The hanhaga makes it ours. Of course minhag cannot erase halacha. It cannot replace what Hashem commanded. But when minhag is healthy and rooted in Torah, it is one of the ways Torah moves from the page into the person. It is the chalavi food at the Shavuos table. It is the tired eyes still learning late into the night. It is the nusach your family davens, the way your kehillah sings a particular tefillah, the extra hiddur, the tefillin your father wore. It is the hanhaga that tells you where you come from, and the geshmak that helps you feel that Torah was not only commanded to you, but given to you.

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"His holy things shall be his."

Hashem gave us holy things. Now they must become ours.

חזק ואחזק

A beautiful Zman Matan Toraseinu and an amazing Shabbos

Reflection Questions

- *Where in my life does halacha feel like something I inhabit from the inside, and where does it still feel external? What minhag or hanhaga helps me feel that Torah is not only commanded to me but given to me?*
- *V'ish es kodashav lo yihiyu: Hashem gave me something holy. What am I actually doing with that gift? Is the fire of my Torah warming and illuminating, or is it burning?*
- *Are my closest relationships built on trust, kavod, and honest communication? Or on fear, insecurity, and avoidance? What would it mean to bring more kedusha into those spaces?*
- *Is there an area of my life where I need to build a personal gedar, a voluntary boundary, +in order to grow? What would I be setting myself aside for?*
- *When I do the same avodah as every other Jew, davening the same words, keeping the same Shabbos, learning the same Torah, how do I make it a unique conversation between me and Hashem?*
- *Tonight, while learning, can I stop at least once and ask Hashem directly: what do You want from me in this? How can my particular neshama, with all its quirks and history, become aligned for You?*